

25SMCV05110 25SMCV05110

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-11

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

11, 2026

CASE NUMBER

25SMCV05110

MATTER

Request

for Default Judgment

This case arises from a wage and hour dispute involving a handyman employee/contractor.

On September 24, 2025, Plaintiff Nicholas Diorio ("Plaintiff") filed suit against Defendants Superior Plus Real Estate Group, Inc.; Superior Real Estate LLC ("Defendant") and Does 1-10, alleging eleven causes of action as follows:

1.

Failure to pay minimum wages in violation of Labor Code, §§ 1194, 1197

2.

Failure to pay overtime wages in violation of Labor Code, §§ 510, 1194

3.

Failure to provide meal periods in violation of Labor Code, § 512

4.

Failure to provide rest periods in violation of Labor Code, § 226.7

5.

Failure to pay all wages due upon separation in violation of Labor Code, §§ 201-203

6.

Failure to maintain all required payroll and employment records in violation of Labor Code, § 1198.5

7.

Failure to provide accurate itemized wage statements in violation of Labor Code, § 226

8.

Constructive discharge in violation of public policy

9.

Failure to provide employment records upon request in violation of Labor Code, §§ 226, 1198.5

10. Retaliation

for exercising Labor Code rights, Labor Code, § 98.6

11. Unfair

Business Practices in violation of Bus. & Prof. Code, §§ 17200, et seq.

Plaintiff voluntarily dismissed Superior Plus Real Estate Group, Inc.
on November 21, 2025.

Defendant was personally served with a copy of the summons and
complaint on February 16, 2026. Default
was entered against Defendant on July 17, 2026, and the Doe Defendants were
dismissed the same day.

Plaintiff now requests default judgment in the amount of \$552,144.21,
representing \$509,649.00 in compensatory damages, \$12,700 in special damages,
\$23,874.01 in prejudgment interest, \$1,984.20 in costs, and \$3,937 in
attorneys' fees.

A. Damages

Other

than statutory penalties of \$750 pursuant to Labor Code section 226 for failure
to provide payroll records within 21 days and statutory penalties of \$750
pursuant to Labor Code section 1198.5 for failure to provide personnel records
within thirty days, Plaintiff's Complaint seeks only special and
compensatory damages "according to proof."

However, the Court cannot award damages that are in excess of what is specifically
pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief
granted to the plaintiff, if there is no answer, cannot exceed that demanded in
the complaint"]; *Levine v. Smith* (2006)
145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default
judgment, the plaintiff is limited to the damages specified in the complaint"].)

Thus, the Court cannot award any
damages in excess of the \$1,500 statutory damages demanded in the operative
complaint.

Since the hearing on Plaintiff's initial
default judgment request (see Minute Order of July 23, 2026), Plaintiff has
filed a Statement of Damages, indicating that the statement was served on
Defendant by mail on August 6, 2026.

However, the Court finds this inadequate for two reasons.

In general, “[a] statement of damages cannot be relied on to establish a plaintiff’s monetary damages on the defendant’s default, except in a personal injury or wrongful death case.” (Cal. Judges Benchbook, Civ. Proc. Before Trial § 16.16, p. 1924, emphasis added, citations omitted.) In *Sporn v. Home Depot USA, Inc.*, the Court of Appeal determined:

Defendant also attacks the judgment under section 425.11, contending that plaintiff was required to serve it with a statement of damages and failed to do so. Section 425.11 applies to an action for personal injuries or wrongful death and was passed concurrently with the amendment to section 425.10 that prohibits stating the amount demanded in the complaint filed in such an action. Section 425.11 was enacted to satisfy the due process requirement that defendants be apprised of their exposure before a default may be taken. But here the complaint, which was not limited to personal injuries and did not claim wrongful death, expressly apprised defendant of the amount demanded. A statement of damages would have been superfluous and was not required under these circumstances.

(*Sporn v. Home Depot USA, Inc.* (2005) 126 Cal.App.4th 1294, 1302 [Plaintiff’s claims of negligence, gross negligence, fraudulent misrepresentation and fraud centered on the theft of his identity] [cleaned up & emphasis added].)

First, similar to the appellate court’s determination *Sporn v. Home Depot USA, Inc.*, this Court finds that Plaintiff’s action is not one for personal injuries or wrongful death as defined pursuant to Code of Civil Procedure sections 425.10 and 425.11.

Second, belated service of a statement of damages on August 6, 2026, after default was entered on July 17, 2026 does not satisfy the due process requirement that Defendant be apprised of its potential exposure before a default is taken against it.

As such, as the Court previously indicated, Plaintiff will need to amend the complaint and serve it on Defendants before the Court will enter default judgment as requested.

B. Prejudgment Interest

Because

the Court cannot award damages not specified in the Complaint, the Court similarly cannot award prejudgment interest on those damages.

C. Attorneys' Fees and Costs

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10).) Code of Civil Procedure section 1021 provides "[e]xcept as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties [....]"

Labor Code section 218.5

provides a statutory basis for the recovery of attorneys' fees to a prevailing employee in an action brought for the nonpayment of wages.

But as discussed above,

because the operative Complaint does not specify damages for the nonpayment of wages, the Court cannot award Plaintiff any damages for the nonpayment of wages. As such, the Court does not find Plaintiff is entitled to recover his reasonable attorneys' fees incurred.

Plaintiff also requests \$1,984.20 in costs, but

Plaintiff neglected to fill out the memorandum of costs on the back of form CIV-100, breaking down what these costs are comprised of. Without such a breakdown, the Court cannot discern whether these costs are allowable, in whole or in part, pursuant to Code of Civil Procedure section 1033.5, subdivision (a), discretionary under subdivision (c), or disallowable under subdivision (b).

CONCLUSION

For the foregoing

reasons, Plaintiff's request for entry of default judgment is denied without prejudice.

Unless Plaintiff

waives notice, the Clerk of the Court shall provide notice of the Court's ruling.

DATED: August 11, 2026 _/s/_____

Michael
E. Whitaker

Judge
of the Superior Court